4 Shipboard incineration of sewage sludge and sludge oil generated during normal operation of a ship may also take place in the main or auxiliary power plant or boilers, but in those cases, shall not take place inside ports, harbours or estuaries.

5 Nothing in this regulation either:

.1 affects the incineration at sea prohibitions of the Convention on the

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SOURCE: MEPC.328(76).pdf
those cases, shall not take place inside ports, harbours or estuaries.

5 Nothing in this regulation either:

.1 affects the incineration at sea prohibitions of the Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter, 1972, as amended, and the 1996 Protocol thereto, or other requirements thereof,
or

.2 precludes the development, installation and operation of alternative design shipboard thermal waste treatment devices that meet or exceed the requirements of this regulation.

6.1 Except as provided in paragraph 6.2 of this regulation, each incinerator on a ship constructed on or after 1 January 2000 or incinerator that is installed on board a ship on or after 1 January 2000 shall meet the requirements contained in appendix IV to this Annex. Each incinerator subject to this paragraph shall be approved by the Administration taking into account the standard specification for shipboard incinerators developed by the Organization;

6.2 The Administration may allow exclusion from the application of paragraph 6.1 of this regulation to any incinerator installed on board a ship before 19 May 2005, provided that the

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SOURCE: MEPC.328(76).pdf
6.2 The Administration may allow exclusion from the application of paragraph 6.1 of this regulation to any incinerator installed on board a ship before 19 May 2005, provided that the ship is solely engaged in voyages within waters subject to the sovereignty or jurisdiction of the State the flag of which the ship is entitled to fly.

7 Incinerators installed in accordance with the requirements of paragraph 6.1 of this regulation shall be provided with a manufacturer's operating manual, which is to be retained with the unit and which shall specify how to operate the incinerator within the limits described in paragraph 2 of appendix IV of this Annex.

8 Personnel responsible for the operation of an incinerator installed in accordance with the requirements of paragraph 6.1 of this regulation shall be trained to implement the guidance provided in the manufacturer's operating manual as required by paragraph 7 of this regulation.
9 For incinerators installed in accordance with the requirements of paragraph 6.1 of this regulation the combustion chamber gas outlet temperature shall be monitored at all times the

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9 For incinerators installed in accordance with the requirements of paragraph 6.1 of this regulation the combustion chamber gas outlet temperature shall be monitored at all times the

unit is in operation. Where that incinerator is of the continuous-feed type, waste shall not be fed into the unit when the combustion chamber gas outlet temperature is below 850°C. Where that incinerator is of the batch-loaded type, the unit shall be designed so that the combustion chamber gas outlet temperature shall reach 600°C within five minutes after start-up and will thereafter stabilize at a temperature not less than 850°C.

Regulation 17
Reception facilities

1 Each Party undertakes to ensure the provision of facilities adequate to meet the:

.1 needs of ships using its repair ports for the reception of ozone-depleting substances and equipment containing such substances when removed from ships;

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SOURCE: MEPC.328(76).pdf
1 Each Party undertakes to ensure the provision of facilities adequate to meet the:

.1 needs of ships using its repair ports for the reception of ozone-depleting substances and equipment containing such substances when removed from ships;

.2 needs of ships using its ports, terminals or repair ports for the reception of exhaust gas cleaning residues from an exhaust gas cleaning system;

without causing undue delay to ships, and

.3 needs in ship -breaking facilities for the reception of ozone-depleting substances and equipment containing such substances when removed from ships.

2 Small island developing States may satisfy the requirements in paragraph 1 of this regulation through regional arrangements when, because of those States ' unique circumstances, such arrangements are the only practical means to satisfy these requirements. Parties participating in a regional arrangement shall develop a Regional Reception Facilities Plan, taking into account the guidelines developed by the Organization.

The Government of each Party participating in the arrangement shall consult with the Organization for circulation to the Parties of the present Convention:

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SOURCE: MEPC.328(76).pdf
Plan, taking into account the guidelines developed by the Organization.

The Government of each Party participating in the arrangement shall consult with the Organization for circulation to the Parties of the present Convention:

.1 how the Regional Reception Facilities Plan takes into account the Guidelines;

.2 particulars of the identified Regional Ships Waste Reception Centres; and

.3 particulars of those ports with only limited facilities.

3 If a particular port or terminal of a Party is, taking into account the guidelines to be developed by the Organization, remotely located from, or lacking in, the industrial infrastructure necessary to manage and process those substances referred to in paragraph 1 of this regulation and therefore cannot accept such substances, then the Party shall inform the Organization of any such port or terminal so that this information may be circulated to all Parties and Member States of the Organization for their information and any appropriate action. Each Party that has provided the Organization with such information shall also notify the

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and Member States of the Organization for their information and any appropriate action. Each Party that has provided the Organization with such information shall also notify the Organization of its ports and terminals where reception facilities are available to manage and process such substances.

4 Each Party shall notify the Organization for circulation to the Members of the Organization of all cases where the facilities provided under this regulation are unavailable or alleged to be inadequate.
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 31 -

Regulation 18
Fuel oil availability and quality

Fuel oil availability

1 Each Party shall take all reasonable steps to promote the availability of fuel oils that comply with this Annex and inform the Organization of the availability of compliant fuel oils in its ports and terminals.

2.1 If a ship is found by a Party not to be in compliance with the standards for compliant

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comply with this Annex and inform the Organization of the availability of compliant fuel oils in its ports and terminals.

2.1 If a ship is found by a Party not to be in compliance with the standards for compliant fuel oils set forth in this Annex, the competent authority of the Party is entitled to require the ship to:

.1 present a record of the actions taken to attempt to achieve compliance; and

.2 provide evidence that it attempted to purchase compliant fuel oil in accordance with its voyage plan and, if it was not made available where planned, that attempts were made to locate alternative sources for such fuel oil and that despite best efforts to obtain compliant fuel oil, no such fuel oil was made available for purchase.

2.2 The ship should not be required to deviate from its intended voyage or to delay unduly the voyage in order to achieve compliance.

2.3 If a ship provides the information set forth in paragraph 2.1 of this regulation, a Party shall take into account all relevant circumstances and the evidence presented to determine the appropriate action to take, including not taking control measures.

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shall take into account all relevant circumstances and the evidence presented to determine the